

**CV-24-007913 GUTIERREZ, HOMAR vs GENERAL MOTORS LLC -
Plaintiff's Motion for Attorney Fees, Costs and Expenses - CONTINUED, on
the Court's own motion.**

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The Court notes that both Counsel herein have substantial experience with these types of matters and are presumably well-acquainted with the law governing the determination of reasonable fees and expenses pursuant to the statute. Nevertheless, these types of fee disputes are commonplace and appear to reflect a default pattern of refusing to compromise in favor of "trying their luck" before the court, thus wasting judicial resources in the hopes of obtaining a ruling favoring their side. The Court notes assertions by Plaintiff that informal resolution of this issue was unsuccessful. However, in the absence of any meaningful description of efforts to reach a resolution or any attempts at compromise, the Court believes that potential exists for the parties to informally resolve the issues presented herein if genuine efforts to meet and confer as to such issues are undertaken in good faith. Therefore, the hearing is continued to October 28, 2026, at 8:30 am in Department 24 of this Court for that purpose. The parties are ordered to meet and confer in person or by online video conference to discuss the issues herein. The parties are further ordered to submit a Joint Status Statement by October 21, 2026, describing their efforts to meet-and-confer and any resolution or narrowing of the issues they were able to achieve. The Court strongly encourages the parties to make genuine efforts to informally resolve their differences with due civility to one another. Should counsel for the parties be unable to reach a reasonable compromise of any of the issues presented by the instant motion, the Court may require personal appearances at the time of the continued hearing to further address the issues herein.

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